

26STCV10989 26STCV10989

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C09%2F09%2F2026

Source SHA-256: 2a22fd2e79298b565e3ac13c0b9f864dad8bed47ea13ef45ba0899f982373383

Case Number: 26STCV10989 Hearing Date: September 9, 2026 Dept: 408

1. Defendant Mei Ling Ying's Demurrer to Plaintiff Dave Barela's First Amended Complaint is CONTINUED to November 6, 2026, at 10:00 AM.

2. Defendant Mei Ling Ying's Motion to Strike Portions of Plaintiff Dave Barela's First Amended Complaint is CONTINUED to November 6, 2026, at 10:00 AM.

I. BACKGROUND

On April 3, 2026, Plaintiff Dave Barela ("Plaintiff") filed a complaint against Defendant Mei Ling Ying ("Defendants") alleging causes of action for:

1. Imposition of Purchase Money Resulting Trust on Real Properties;

2. Contractual Fraud;

3. Contractual Concealment;

4. Breach of Fiduciary Duty;

5. Violation of California Civil Code § 2223;

6. Violation of California Civil Code § 2224;

7. Conversion;

8. Accounting; and

9. Common Count [Money Had And Received].

On May 15, 2026, Plaintiff filed a First Amended Complaint ("FAC").

On June 4, 2026, Defendant filed this Demurrer and Motion to Strike as to Plaintiff's FAC. On August 25, 2026, Plaintiff filed an opposition. As of September 6, 2026, no reply has been filed.

II. DEMURRER

A. Legal Standard

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pled or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Discussion

Defendant demurs to the nine causes of action alleged in Plaintiff's FAC pursuant to Code of Civil Procedure section 430.10, subdivision (d), (e), and (f), on the grounds that Plaintiff lacks standing to assert such claims, fails to state sufficient facts to constitute such cause of action, and the pleading is uncertain.

As to standing, Defendant argues that Plaintiff has not adequately alleged a valid assignment by Charlie Lu ("Lu"), Defendant's former husband, to pursue the asserted causes of action. (Motion, at p. 14.) Plaintiff also argues that claims predicated on real property ownership interests and marital fiduciary duties are not assignable and cannot be asserted by Plaintiff. (*Id.*, at pp. 15-16.)

Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute. (Code Civ. Proc., § 367.) "An assignee of an assignable chose in action has taken legal title and 'may sue in his or her own name.' [Citations.] Any assignment 'merely transfers the interest of the assignor. The assignee 'stands in the shoes' of the assignor, taking his or her rights and remedies, subject to any defenses that the obligor has against the assignor prior to notice of the assignment.'" (*Lazar v. Bishop* (2024) 107 Cal.App.5th 668, 677.)

"However, there are two categories of exceptions to the general rule of assignability. First, 'highly personalized rights of recovery are not assignable.' [Citation] Highly personalized causes of action typically involve 'wrongs done to the person, the reputation or the feelings of an injured party.' [Citation] Second, legal malpractice claims are not assignable." (*Id.*, at 678 [citations omitted].) The first exception to assignability focuses on the personal nature of the damages sought by the assignee. (*Ibid.*) As to the second exception, "California courts have consistently held legal malpractice claims are nonassignable to protect the integrity of the uniquely personal and confidential attorney-client relationship." [Citation] '[A]lthough choses in action for property or pecuniary losses are generally assignable, a claim for legal malpractice is more

akin to those types of claims which are not assignable, i.e., claims for personal injury, wrongs of a purely personal nature (such as injuries to the reputation or feelings of the injured party) or breaches of contracts of a purely personal nature (such as promises of marriage). [Citations.] ... [T]he attorney-client relationship (although containing contractual elements) is unique and involves a highly personal and confidential relationship, making the relationship "... more analogous to a contract of a personal nature than to an ordinary commercial contract" [citation], and rendering claims for negligent breach thereof nonassignable." (Id., at 679-680 [citations omitted].)

Moreover, "[a]ssignability under [Civil Code] section 954 is limited to 'a thing of action,' a term defined in [Civil Code] section 953 as 'a right to recover money or other personal property by a judicial proceeding.' By definition, '[t]he words "personal property" include money, goods, chattels, things in action, and evidences of debt,' and do not include 'lands, tenements, and hereditaments,' which instead are 'real property.'" (Martin v. Bridgeport Community Assn., Inc. (2009) 173 Cal.App.4th 1024, 1032.) "A cause of action seeking the transfer of an interest in real property cannot be assigned absent assigning the interest in the property." (Chao Fu, Inc. v. Chen (2012) 206 Cal.App.4th 48, 57.)

The complaint alleges that "Plaintiff has standing to bring this action as an Assignee of Charlie Lu [(“Lu”)], [Defendant's] former husband." (Complaint, ¶ 1.) The complaint further alleges that "[t]his is an action, by assignment, to recover (a) title and ownership of three real estate properties from [Defendant], to wit, the property located at 502 W. Woodruff Ave., Arcadia, CA 91007 ("Arcadia Property"); the property located at 683 Saint Francis Blvd., Daly City, CA 94015 ("Daly City Property"); and the property located at 2852 Nina St., Pasadena, CA 91007 ("Pasadena Property"), which [Defendant] purchased by using [Lu's] separate property funds, and which, contrary to [Lu's] instructions, were not put into his name[.]" (Id., ¶ 5.) Plaintiff seeks, among other relief, transfer of title to the properties described, special and economic damages, and the imposition of a constructive trust. (Id., at pp. 33-36.)

The court requests that the parties submit supplemental briefing addressing whether the rights to pursue such claims are assignable and whether Plaintiff, through assignment, is allowed to seek more than pecuniary damages against Defendant. The parties are instructed to address the authority cited above, in addition to any relevant authority that would clarify the propriety of Plaintiff's action.[1] The court recognizes Defendant has cited to these authorities, but Plaintiff fails to address these authorities and the court finds that in order to make an appropriate order, Plaintiff must respond.

Accordingly, the demurrer is continued.

III. MOTION TO STRIKE

A. Legal Standard

Pursuant to Code of Civil Procedure section 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

B. Discussion

Based on the request for supplemental briefing as noted above, the court similarly continues the motion to strike.

IV. CONCLUSION

1. Defendant Mei Ling Ying's Demurrer to Plaintiff Dave Barela's First Amended Complaint is CONTINUED to November 6, 2026, at 10:00 AM.

2. Defendant Mei Ling Ying's Motion to Strike Portions of Plaintiff Dave Barela's First Amended Complaint is CONTINUED to November 6, 2026, at 10:00 AM.

[1] It appears to the court that the statute of limitations may have expired years ago on most, if not all, the causes of action as the transfers at issue were adjudicated through the Stipulated Decree of Divorce. However, the court finds that the supplemental briefing will allow the court to substantively address both alternative arguments.